



Association of California
Egg Farmers

17-0042

RECEIVED

OCT 25 2017

INITIATIVE COORDINATOR
ATTORNEY GENERAL'S OFFICE

October 24, 2017

Initiative Coordinator
Office of the Attorney General
State of California
PO Box 994255
Sacramento, CA 94244-25550

Re: Request for Title and Summary for Proposed Initiative

Dear Initiative Coordinator:

With this letter, I submit a proposed statewide ballot measure in accordance with Article II of Section 10(d) of the California Constitution. I am the proponent of the measure and a registered voter in the State of California. Please prepare a circulating title and summary of the measure as provided by law.

Enclosed with this letter and text of the proposed measure is a check in the amount of \$2,000 and the affidavits required by the Elections Code.

For purposes of inquiries from the public and the media, please direct them as follows:

Thomas W. Hiltachk
455 Capitol Mall, Suite 600
Sacramento, CA 95814

Thank you for your time and attention processing my request.

Sincerely,

Debra Jane Murdock

THE PEOPLE OF THE STATE OF CALIFORNIA DO ENACT AS FOLLOWS:

SECTION 1. This Act shall be known and may be cited as the Prevention of Cruelty to Farm Animals Act.

SECTION 2. The purpose of this Act is to prevent animal cruelty by phasing out extreme methods of farm animal confinement, which also threaten the health and safety of California consumers, and increase the risk of foodborne illness and associated negative fiscal impacts on the State of California.

SECTION 3. SECTION 25990 OF THE CALIFORNIA HEALTH AND SAFETY CODE IS HEREBY AMENDED TO READ:

In addition to other applicable provisions of law,;

(a) ~~a person~~ A farm owner or operator within the State of California shall not tether or confine knowingly cause any covered animal, to be confined in a cruel manner, on a farm, for all or the majority of any day, in a manner that prevents such animal from:

(a) ~~Lying down, standing up, and fully extending his or her limbs; and~~

(b) ~~Turning around freely.~~

(b) A business owner or operator shall not knowingly engage in the sale within the State of California of any:

(1) Whole veal meat that the business owner or operator knows or should know is the meat of a covered animal who was confined in a cruel manner.

(2) Whole pork meat that the business owner or operator knows or should know is the meat of a covered animal who was confined in a cruel manner, or is the meat of immediate offspring of a covered animal who was confined in a cruel manner.

(3) Shell egg that the business owner or operator knows or should know is the product of a covered animal who was confined in a cruel manner.

(4) Liquid eggs that the business owner or operator knows or should know are the product of a covered animal who was confined in a cruel manner.

SECTION 4. SECTION 25991 OF THE CALIFORNIA HEALTH AND SAFETY CODE IS HEREBY AMENDED TO READ:

For the purposes of this chapter, the following terms have the following meanings:

(a) “Breeding pig” means any female pig of the porcine species kept for the purpose of commercial breeding, who is 6 months or older or pregnant.

(b) “Business owner or operator” means any person who owns or controls the operations of a business.

(c) “Cage-free housing system” means an indoor or outdoor controlled environment for egg-laying hens within which hens are free to roam unrestricted; are provided enrichments that allow them to exhibit natural behaviors, including, at a minimum, scratch areas, perches, nest boxes, and dust bathing areas; and within which farm employees can provide care while standing within the hens’ usable floor space. Cage-free housing systems include, to the extent they comply with the requirements of this subsection:

(1) “Multi-tiered aviaries” in which hens have access to multiple elevated platforms that provide hens with usable floor space both on top of and underneath the platforms;

(2) “Partially-slatted systems” in which hens have access to elevated flat platform under which manure drops through the flooring to a pit or litter removal belt below;

(3) “Single-level all litter floor systems” bedded with litter, and in which hens have limited or no access to elevated flat platforms; and

(4) Any future systems that will comply with the requirements of this subsection.

~~(a)~~(d) “Calf raised for veal” means any calf of the bovine species kept for the purpose of producing the food product described as veal.

~~(e)~~ “Confined in a cruel manner” means any one of the following acts:

(1) Confining a covered animal in a manner that prevents the animal from lying down, standing up, fully extending the animal’s limbs, or turning around freely;
or

(2) After December 31, 2019, confining a calf raised for veal with less than 43 square feet of usable floor space per calf; or

(3) After December 31, 2021, confining a breeding pig with less than 24 square feet of usable floor space per pig; or

(4) After December 31, 2019, confining an egg-laying hen with less than 144 square inches of usable floor space per hen; or

(5) After December 31, 2023, confining an egg-laying hen with less than the amount of usable floor space per hen required by the 2017 edition of the United Egg Producers’ Animal Husbandry Guidelines for U.S. Egg-Laying Flocks: Guidelines for Cage-Free Housing, or in an enclosure other than a cage-free housing system.

~~(b)~~(f) “Covered animal” means any ~~pig during pregnancy~~, calf raised for veal, ~~breeding pig~~, or egg-laying hen who is kept on a farm.

~~(e)~~(g) “Egg-laying hen” means any female domesticated chicken, turkey, duck, goose, or guinea fowl kept for the purpose of egg production.

~~(d)~~(h) “Enclosure” means ~~any cage, crate, or other~~ a structure ~~(including what is commonly described as a “gestation crate” for pigs; a “veal crate” for calves; or a “battery cage” for egg-laying hens)~~ used to confine a covered animal or animals.

~~(e)~~(i) “Farm” means the land, building, support facilities, and other equipment that are wholly or partially used for the commercial production of animals or animal products used for food or fiber; and does not include live animal markets, ~~establishments at which mandatory inspection is provided under the Federal Meat Inspection Act, or official plants at which mandatory inspection is maintained under the Federal Egg Products Inspection Act.~~

(j) “Farm owner or operator” means any person who owns or controls the operations of a farm.

~~(f)~~(k) “Fully extending ~~his or her~~ the animal’s limbs” means fully extending all limbs without touching the side of an enclosure, ~~including, in the case of egg-laying hens,~~

fully spreading both wings without touching the side of an enclosure or other egg-laying hens or another animal.

(l) “Liquid eggs” means eggs of an egg-laying hen broken from the shells, intended for human food, with the yolks and whites in their natural proportions, or with the yolks and whites separated, mixed, or mixed and strained. Liquid eggs do not include combination food products (including pancake mixes, cake mixes, cookies, pizzas, cookie dough, ice cream, or similar processed or prepared food products) that are comprised of more than liquid eggs, sugar, salt, water, seasoning, coloring, flavoring, preservatives, stabilizers, and similar food additives.

~~(g)~~(m) “Person” means any individual, firm, partnership, joint venture, association, limited liability company, corporation, estate, trust, receiver, or syndicate.

~~(h) “Pig during pregnancy” means any pregnant pig of the porcine species kept for the primary purpose of breeding.~~

(n) “Pork meat” means meat, as defined in 3 CCR 900 as of August 2017, of a pig of the porcine species, intended for use as human food.

(o) “Sale” means a commercial sale by a business that sells any item covered by this chapter, but does not include any sale undertaken at an establishment at which mandatory inspection is provided under the Federal Meat Inspection Act, or any sale undertaken at an official plant at which mandatory inspection is maintained under the Federal Egg Products Inspection Act. For purposes of this section, a sale shall be deemed to occur at the location where the buyer takes physical possession of an item covered by section 25990 of this chapter.

(p) “Shell egg” means a whole egg of an egg-laying hen in its shell form, intended for use as human food.

~~(i)~~(q) “Turning around freely” means turning in a complete circle without any impediment, including a tether, and without touching the side of an enclosure or another animal.

(r) “Uncooked” means requiring cooking prior to human consumption.

(s) “Usable floor space” means the total square footage of floor space provided to each covered animal, as calculated by dividing the total square footage of floor space provided to the animals in an enclosure by the number of animals in that enclosure. In the case of egg-laying hens, “usable floor space” shall include both ground space and elevated level flat platforms upon which hens can roost, but shall not include perches or ramps.

(t) “Veal meat” means meat, as defined in 3 CCR 900 as of August 2017, of a calf raised for vealintended for use as human food.

(u) “Whole pork meat” means any uncooked cut of pork (including bacon, ham, chop, ribs, riblet, loin, shank, leg, roast, brisket, steak, sirloin or cutlet) that is comprised entirely of pork meat, except for seasoning, curing agents, coloring, flavoring, preservatives and similar meat additives. Whole pork meat does not include combination food products (including soups, sandwiches, pizzas, hot dogs, or similar processed or prepared food products) that are comprised of more than pork meat. seasoning, curing agents, coloring, flavoring, preservatives, and similar meat additives.

(v) "Whole veal meat" means any uncooked cut of veal (including chop, ribs, riblet, loin, shank, leg, roast, brisket, steak, sirloin or cutlet) that is comprised entirely of veal meat, except for seasoning, curing agents, coloring, flavoring, preservatives, and similar meat additives. Whole veal meat does not include combination food products (including soups, sandwiches, pizzas, hot dogs, or similar processed or prepared food products) that are comprised of more than veal meat, seasoning, curing agents, coloring, flavoring, preservatives and similar meat additives.

SECTION 5. SECTION 25992 OF THE CALIFORNIA HEALTH AND SAFETY CODE IS HEREBY AMENDED TO READ:

This chapter shall not apply:

- (a) During scientific or agricultural medical research.
- (b) During examination, testing, individual treatment or operation for veterinary purposes.
- (c) During transportation.
- (d) During rodeo exhibitions, state or county fair exhibitions, 4-H and FFA programs, and similar exhibitions.
- (e) During the slaughter of a covered animal in accordance with the provisions of Chapter 6 (commencing with Section 19501) of Part 3 of Division 9 of the Food and Agricultural Code, relating to humane methods of slaughter, and other applicable law and regulations.
- (f) To a breeding pig during the seven-day five (5) day period prior to the breeding pig's expected date of giving birth, and any day that the breeding pig is nursing piglets.
- (g) During temporary periods for animal husbandry purposes for no more than six (6) hours in any twenty-four (24) hour period, and no more than twenty-four (24) hours total in any thirty (30) day period.

SECTION 6. SECTION 25993 OF THE CALIFORNIA HEALTH AND SAFETY CODE IS HEREBY AMENDED TO READ:

- (a) The California Department of Food and Agriculture and the California Department of Public Health shall jointly promulgate rules and regulations for the implementation of this Act by September 1, 2019.
- (b) Any person who violates any of the provisions of this chapter is guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine not to exceed one thousand dollars (\$1,000) or by imprisonment in the county jail for a period not to exceed 180 days or by both such fine and imprisonment. In addition, a violation of section 25990(b) of this chapter constitutes "unfair competition" as defined in Section 17200 of the Business and Professions Code and is punishable as prescribed in Chapter 5 (commencing with section 17200) of Part 2 of Division 7 of the Business and Professions Code.
- (c) The provisions of this chapter relating to cruel confinement of covered animals and sale of products shall supersede any conflicting regulations, including conflicting

regulations pursuant to the California Code of Regulations, Title 22, Division 2, Subdivision 6, Chapter 6.

SECTION 7. SECTION 25993.1 OF THE CALIFORNIA HEALTH AND SAFETY CODE IS HEREBY AMENDED TO READ:

It shall be a defense to any action to enforce section 25990(b) of this chapter that a business owner or operator relied in good faith upon a written certification by the supplier that the whole veal meat, whole pork meat, shell eggs, or liquid eggs at issue was not derived from a covered animal who was confined in a cruel manner, or from the immediate offspring of a breeding pig who was confined in a cruel manner.

SECTION 8. This Act shall be amended only by a statute approved by a vote of four fifths of the members of both houses of the Legislature. Any amendment of this Act shall be consistent with and further the purposes of this Act.

SECTION 9. If any provision of this Act, or the application thereof to any person or circumstances, is held invalid or unconstitutional, that invalidity or unconstitutionality shall not affect other provisions or applications of this Act that can be given effect without the invalid or unconstitutional provision or application, and to this end the provisions of this Act are severable.